

Mr. Ponce rather than any determination as to the merits. Neither side provides a great deal of robust argument/facts for their respective positions. Denial of relief appears possible on this record.

Fourth, the discovery request, as presented would not unreasonably intrude upon the privacy rights of class members. To be sure, “the contact information for [Defendants’] current and former employees deserves privacy protection.” *Belaire-West Landscape, Inc.*, 149 Cal.App.4th at 561. “While it is unlikely that the employees anticipated broad dissemination of their contact information when they gave it to [Defendants], that does not mean that they would wish it to be withheld from a class action plaintiff who seeks relief for violations of employment laws.” *Ibid.* “[C]urrent and former [] employees reasonably [can] be expected to want their information disclosed to a class action plaintiff who may ultimately recover for them unpaid wages that they are owed.” *Ibid.* Moreover, “no serious invasion of privacy would result from the release of the names, last known addresses, and last known telephone numbers of current and former employees as long as the disclosure was limited to the named plaintiff[] in a putative class action filed against their employer following a written notice to each employee giving them the opportunity to object to the disclosure of that information.” *Ibid.* “Disclosure of the contact information with an opt-out notice would not appear to unduly compromise either informational privacy [*i.e.*, protection against “dissemination and misuse of sensitive and confidential information”] or autonomy privacy [*i.e.*, protection against interference with “personal activities and decisions”] in light of the opportunity to object to the disclosure. *Id.* at 559, 561.

In sum, after applying a balancing test and weighing the actual or potential abuse of the class action procedure against the potential benefits that might be gained, the Court concludes that precertification discovery, as outlined in Plaintiff’s motion at 9:12-10:1, is warranted. The benefits of this discovery clearly and substantially outweigh any potential risk of potential abuse or prejudice to the putative class members.

3. CU0002002 Cynthia Repella vs. Tania Blair

This matter is removed from calendar pursuant to the notice of withdrawal of the motion to be relieved as counsel filed June 4, 2026.

4. CU0002304 Jason Christ v. Justis Barquilla

Plaintiff Jason Christ’s motion to strike portions of defendant’s answer and cross-complaint is granted in part.

Meet and Confer

Defendant argues that Plaintiff failed to meet and confer prior to filing the motion to strike. Defendant appears correct. “Before filing a motion to strike pursuant to [Code of Civil Procedure sections 435 to 437b], the moving party shall meet and confer” Code Civ. Proc., § 435.5(a). There is no evidence that Plaintiff did do here. That said, “[a] determination by the court that the meet and confer process was insufficient shall not be grounds to grant or deny the motion to strike.” Code Civ. Proc., § 435.5(a)(4). “If, upon review of a declaration under section [435.5(a)(3)] a court learns no meet and confer has taken place, or concludes further conferences

between counsel would likely be productive, it retains discretion to order counsel to meaningfully discuss the pleadings with an eye toward reducing the number of issues or eliminating the need for a demurrer, and to continue the hearing date to facilitate that effort.” *Dumas v. Los Angeles County Board of Supervisors* (2020) 45 Cal.App.5th 348, 355, fn. 3. Here, the Court does not believe further conferences are necessary and turns to the merits. Plaintiff shall comply with all required meet and confer requirements hereafter under the Rules of Civil Procedure.

Legal Standard

"Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof" Code Civ. Proc. § 435(b)(1). "The court may, upon a motion made pursuant to Section 435, ..., and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading. (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court." Code Civ. Proc. § 436.

Cross-Complaint

Plaintiff seeks to strike certain portions of Defendant’s cross-complaint. Defendant filed a request for dismissal of the cross-complaint on July 30, 2026. Therefore, the motion to strike as it applies to the cross-complaint is moot.

Answer

Plaintiff moves to strike Defendant’s “frivolous claim” affirmative defense arguing it is not an affirmative defense and that it is a legal conclusion. Point one of this argument has merit.

“An affirmative defense is ‘new matter constituting a defense’ ... and is defined as ‘[a] defendant's assertion of facts and arguments that, if true, will defeat the plaintiff's or prosecution's claim, even if all the allegations in the complaint are true.’ ” *Morris Cerullo World Evangelism v. Newport Harbor Offices & Marina, LLC* (2021) 67 Cal.App.5th 1149, 1158, citing Code Civ. Proc. § 431.30(b)(2)), and Black’s Law Dict. (11th ed. 2019) p. 528, col. 2. “Because an affirmative defense can only defeat a plaintiff's claim, and [a]ffirmative relief is ‘an award, such as damages, that goes beyond merely defeating the plaintiff's recovery’, it follows logically that an affirmative defense cannot give rise to affirmative relief such as damages.” *Ibid.*, citing *City of Stockton v. Superior Court* (2007) 42 Cal.4th 730, 746, fn. 12.

Such is the case here. Defendant alleges as a defense that Plaintiff’s claim is frivolous, reserves the right to dismiss the same, and reserves the right to seek fees and costs “pursuant to statute,” apparently a reference to Code of Civil Procedure section 128.5. This “defense,” as articulated, will not *defeat* Plaintiff’s claims *per se*. Moreover, the defense potentially seeks affirmative relief—fees and costs. The frivolous claim defense, therefore, is properly stricken from the answer, without prejudice. Both parties may, as they deem warranted, seek relief under Code of Civil Procedure section 128.5 by noticing, filing and serving an appropriate motion.

Defendants' Robert Thomas and Deborah Thomas unopposed motion to strike portions of the complaint related to punitive damages is granted with leave to amend.

Legal Standard

A motion to strike punitive damages is properly granted where a plaintiff does not state a *prima facie* claim for punitive damages, including allegations that defendant is guilty of oppression, fraud or malice. *Turman v. Turning Point of Cent. California, Inc.* (2010) 191 Cal.App.4th 53, 63.

Punitive damages are authorized in tort actions "where the tortious event involves an additional egregious component - 'oppression, fraud, or malice.'" *College Hospital, Inc. v. Superior Court* (1994) 8 Cal.4th 704, 712, citing Civ. Code § 3294(a).

"Oppression" is defined as "despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights." Civ. Code, § 3294 (c)(2). Malice is defined as "conduct which is *intended* by the defendant to cause injury to the plaintiff or *despicable* conduct which is carried on by the defendant with a *willful* and conscious disregard of the rights or safety of others." Civil Code section 3294b(c)(1) (italics added.) "For plaintiffs attempting to prove malice by showing a 'conscious disregard' of their rights as opposed to an actual intent to harm, the Act imposed additional requirements of 'despicable' and 'willful' defense conduct." *College Hospital*, 8 Cal.4th at 713. "'Despicable conduct' is defined ... as 'conduct which is so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people.' Such conduct has been described as '[having] the character of outrage frequently associated with crime.'" *Tomaselli v. Transamerica Ins. Co.* (1994) 25 Cal.App.4th 1269, 1287.

The allegations supporting a request for punitive damages must be alleged with specificity; conclusory allegations without sufficient facts are not enough. *Smith v. Superior Court* (1992) 10 Cal.App.4th 1033, 1041-1042.

Analysis

At bar, Defendants argue Plaintiff's complaint fails to plead sufficient factual allegations to support a prayer for punitive damages, as it merely makes conclusory allegations with no factual basis. Mot., 2:21-22 5, Compl. 3rd COA. Defendant also argues there are no facts alleged to show "despicable conduct" on the part of Defendant, and the conduct alleged is rooted in negligence. Mot., 5: 12-17. The Court agrees in large part.

First, Plaintiff has filed no opposition to the motion; as such, the Court deems Plaintiff's failure to oppose the motion as consent to the granting of the same. See Cal. Rules of Court, rule 8.54(c) ("failure to oppose a motion may be deemed a consent to the granting of the motion."); see, e.g., *Amato v. Downs* (2022) 78 Cal.App.5th 435, 440, n.3 (unopposed motion can be granted on that basis, citing rule 8.54(c)).